

Court No. - 3

Case :- WRIT - C No. - 58757 of 2011

Petitioner :- M/S Kisan Chilling Plant

Respondent :- Appellate Authority/Divisional Commissioner And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Shobhit Gupta

Hon'ble Amitava Lala,J.

Hon'ble Vinay Kumar Mathur,J.

Heard learned counsel for the petitioner and Sri Shobhit Dubey appearing for the respondents.

Against the order of assessment and in consequence thereof, the order of disconnection, a writ petition was filed by the petitioner. In the earlier Writ Petition No. 10383 of 2011 by an order dated 27.7.2011, the petitioner was directed to deposit the amount or prefer an appeal. The petitioner preferred an appeal within a period of 30 days from the date of such order.

The petitioner has preferred an appeal from the order of assessment on 24th August, 2011. But neither the appeal has been entertained by the appellate authority nor any date fixed in connection thereto. As per Clause 6.8 (d) (V) of the U.P. Electricity Supply Code 2005, the appellate authority is obliged to decide the appeal within 30 days by passing a speaking order. According to the respondent-authority, the appellate authority is the Divisional Commissioner, Bareilly Division, Bareilly who is respondent no.1 herein. We are surprised as to why such type of matters are being delayed.

However, in disposing the writ petition at the stage of admission , without imposing any cost, we direct such appellate authority to hear out the appeal and dispose it of upon giving fullest opportunity of hearing by passing a reasoned and speaking order thereon within a period of 30 days from the date of communication of this order positively.

Order Date :- 13.10.2011

V.Sri/-